

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Transcript Order Form and Record Designation

Filed January 26, 2026, by Officer Nolan Rusk.

Transcript order statement

Rusk states that no hearing transcript is required for the January 9, 2026 order. The district court decided the summary-judgment and qualified-immunity motion on written submissions and did not conduct oral argument or an evidentiary hearing. No court-reporter proceeding contains the reasons for the challenged ruling.

This is a no-transcript designation, not a statement that the encounter lacks recorded evidence. The police body-camera and dispatch files are exhibits governed by the district media protocol; they are not judicial-hearing transcripts. Deposition transcripts and report excerpts designated in the written motion record remain district documents or exhibits.

If the appellate court orders transcription of a later judicial proceeding, Rusk will comply with that order. This form concerns the record as it existed when the notice of interlocutory appeal was filed. It does not request transcription of police audio or alteration of any native media.

Record designation — pleadings, motion, and order

Rusk identifies the operative amended complaint and his answer to establish the remaining individual-capacity claim. The initiation packet and assignment order establish case opening, party history, and the written-motion schedule without suggesting that former defendants remain on appeal.

The designated motion set includes Rusk's motion for summary judgment, supporting qualified-immunity memorandum, and statement of facts; Ellison's opposition and response to facts; Rusk's reply; the joint body-camera objections and record-citation chart; and the January 9 memorandum opinion and order. The January 16 notice is included to establish appellate initiation.

These papers preserve both relevant parts of the ruling. The fact submissions show why the strike, belt reach, and immediate-threat history remains contested. The opinion separately states the plaintiff-favorable assumptions used for its constitutional and clearly-established-law conclusions. No excerpt should omit the paragraph explaining that assumed facts are not trial findings.

Record designation — evidence and media limits

The designated evidentiary subjects include the welfare call and CAD record; Rusk and Vega reports; EMS and medical materials; crisis follow-up materials; the two body-camera transcripts and timing exhibits; synchronized audio comparison; custodian authentication; depositions of Ellison, Rusk, Iris Ellison, Vega, and Mateo Cole; and the North, Crane, and Pike expert materials.

Native media are referenced through their district exhibit identifiers, custodian manifest, and hashes. Transmission shall preserve the source objects and agreed access method. A convenience clip, still, transcript, or synchronized demonstrative is not a replacement for the corresponding native export.

The designation retains the joint restrictions: neither camera reliably displays the relevant hands from approximately 19:53:08 through 19:53:22; audio does not independently identify a strike or belt reach; and generated reconstruction is not evidence. Rusk preserves his testimony-based argument while acknowledging that a visual obstruction cannot be reframed as captured proof. Ellison preserves all contrary interpretations and jurisdiction objections.

Record designation — completeness and certification request

Rusk requests that the district clerk certify the complete docket and transmitted record through this filing, then supplement it with any ordinary appellate-opening entry required by rule. The designation identifies important subjects but does not authorize removal of another filed item that forms part of the record under the governing appellate rules.

The parties have been asked to cross-check document identity, title, date, and media manifest. An authenticity stipulation remains limited to the specified digital objects. No party waives an argument about admissible use, completeness of a clip, expert scope, credibility, factual sufficiency, or collateral-order jurisdiction.

This filing does not designate a trial transcript because none exists and no trial has occurred. It does not identify a final judgment because none was entered. It does not ask the clerk to describe Ellison's assumed facts as established facts. The requested certificate should state the pending posture of the sole claim and distinguish the legal immunity ruling from historical issues reserved for a jury.

Respectfully submitted,

Fictional Counsel for Officer Nolan Rusk